

CITATION: Lawson v. Costco, 2010 ONSC 360
COURT FILE NO.: 55841
DATE: 2010/04/12

ONTARIO
SUPERIOR COURT OF JUSTICE

B E T W E E N:

PATRICIA ANN LAWSON

Plaintiff

- and -

COSTCO WHOLESALE CANADA LTD.

Defendant

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)
) Shawn Macdonald for the Plaintiff
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) Bruno Roti for the Defendant
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) **HEARD:** October 6, 7, 8 & 9, 2009

MCGARRY J.:

[1] The plaintiff is a married woman, 69 years of age, who visited the defendant's premises on May 12, 2007. She and her daughter wandered up and down the aisles, in the mood for browsing rather than shopping. The defendant's store, which is outlined on Exhibit 4, is a vast retail location which not only sells an extensive variety of dry goods, but also has display stands which demonstrate the products by sampling. There are typically 12 to 14 of these locations in the store. It is acknowledged that on that the date in question, one of the stands demonstrated caesar salad dressing with one-inch in diameter lettuce pieces which were held in open containers. It is also acknowledged that one of these containers was carried by a customer to the location of the accident. A piece of lettuce fell on the floor causing the plaintiff to slip and fall.

[2] The plaintiff and her daughter ended up in the pharmaceutical aisles located in the northwest corner of Exhibit 4. The daughter proceeded ahead of the plaintiff and heard her mother cry out. When she turned, she saw her on the floor lying in a twisted position with her left leg under her. She noted there was a small skid mark near her mother's foot and saw a piece of lettuce which it is agreed was approximately one to two inches in diameter and was located at "x" on Exhibit 4. The lettuce had been obtained from a sampling station marked as "Demo" on Exhibit 4.

[3] The plaintiff described her fall, that she hurt all over afterwards and asked to be taken home. She stated that she suffered more from embarrassment than otherwise at that time. Her daughter drove her home and realized that her mother was not well and in due course it was determined that she had suffered injuries to her right shoulder and left leg. I will review the injuries in more detail in due course.

[4] The plaintiff had a prior history of medical problems including back pains to her lower back due to stenosis radiating to her right leg and hip. She also had neck problems some 30 years prior which resulted in ongoing migraine headaches. She testified that she had visited her doctor before the fall, that her condition had stabilized. Her physician, Dr. Klara Klein, testified that her condition had improved due to a change in medication.

[5] Prior to the accident she was an active walker, gardener and grandparent, keeping herself in shape by daily use of a treadmill, was able to walk up to four miles per day, approximately 20 miles per week. She felt strongly that her exercise regime would help her cope with her injuries from the accident and to manage the pain with medical advice and massage therapy. She was described by her daughter as being a very active grandparent and I am satisfied from hearing her testimony that this is in fact the case. Subsequent to the fall she went to see Dr. Klein and she described herself as not getting better and that the injuries to her right shoulder resulted in a frozen shoulder and significant pain. She received help from Body Mechanics and its principal Jack Miller described her injuries to the court. He

attempted to relieve the pain by massage therapy, this was successful to a degree, however, due to her six-month winter trip to Florida her condition plateaued. She felt unable to obtain assistance in Florida due to the cost of the therapy and in due course the frozen shoulder resulted. Thereafter she became depressed and housebound.

[6] When she returned after her sojourn in Florida in May 2008, she felt that her condition had improved due to massage therapy, however, her left knee became weak and she started wearing a leg brace.

[7] In describing her condition under cross-examination, she stated that she still has severe pain in her left leg and hip and is concerned that her right shoulder may become frozen again. In providing a prognosis, Dr. Klein described a woman who was very active and had achieved stability in her injuries just prior to the accident but who now suffers from injuries which have restricted her enjoying her life to the degree that one would expect for a woman of her age. In the opinion of the doctor, she is not malingering and truthfully reports her injuries which will not lessen and in the future she will suffer from an ongoing soft tissue complaint.

[8] The defence evidence consisted of employees who worked in the store, including the assistant director of the building. He testified about the extensive training and systems used to monitor security and cleanliness in the store. This consisted primarily of floor walkers who are responsible for walking around the exterior and interior of the building to check doors and take temperatures of various heating units and refrigerators, plus check all of the emergency exits and fire extinguishers while keeping an eye out for garbage. In addition, there were maintenance personnel who toured the building. The floor walker inspection took 21 to 30 minutes which, considering the size of the store, including its exterior, would only permit a cursory inspection of the shelves and floors. In addition, they were required to report all spilled items which related primarily to the flower display and the restrooms.

[9] Two witnesses described their floor walks on the day in question. In particular, Silvana Richards traced her journey, including a walk down the aisle to the west of the demonstration, then north towards the northwest corner of the pharmaceutical section in order to check a fire extinguisher and then south to the point where she completed her inspection. She was asked on three occasions whether she inspected the area where the accident occurred and she advised that she took the same route each time which did not involve inspecting the location of the lettuce.

THE LAW

Generally

[10] The *Occupiers' Liability Act*, R.S.O. 1990, c. 0.2 ["OCA"], sets out liability for a slip and fall accident, codifying negligence principles. As Philip H. Osbourne in *The Law of Torts*, 2d ed.,¹ explains:

It might be assumed that the tort of negligence is adequate to the task of deciding the liability of an occupier of land. The relationship between an occupier and a visitor is a relationship of proximity, and the duty of care would appear to impose an appropriate standard of reasonable care in the circumstances. Negligence law, however, is not applicable in these situations. Occupiers' liability continues to be a discrete area of tort law, albeit one that is increasingly indistinguishable from the tort of negligence.²

Relevant Legislation

The relevant provisions of the OCA provide as follows:

1. In this Act,

“occupier” includes,

¹ Philip H. Osbourne, *The Law of Torts*, 2d ed. (Toronto: Irwin Law, 2003).

² *Ibid.* at 147

- (a) a person who is in physical possession of premises, or
- (b) a person who has responsibility for and control over the condition of premises or the activities there carried on, or control over the persons allowed to enter the premises,

“premises” means lands and structures, or either of them, and includes,

Common law duty of care superseded

2. Subject to section 9, this Act applies in place of the rules of the common law that determine the care that the occupier of premises at common law is required to show for the purpose of determining the occupier’s liability in law in respect of dangers to persons entering on the premises or the property brought on the premises by those persons. R.S.O. 1990, c. 0.2, s. 2.

Occupier’s duty

3.(1) An occupier of premises owes a duty to take such care as in all the circumstances of the case is reasonable to see that persons entering on the premises, and the property brought on the premises by those persons are reasonably safe while on the premises.

3.(2) The duty of care provided for in subsection (1) applies whether the danger is caused by the condition of the premises or by an activity carried on on the premises.

Case Law

[11] When applying the standard of care in an occupier’s liability case the Supreme Court of Canada in *Waldick v. Malcolm*, [1991] 2. S.C.R. 456 (S.C.C.) at p. 472 emphasized that the decision will be fact-driven and thereby varies from case to case. At p. 472 the court stated:

After all, the statutory duty on occupiers is framed quite generally, as indeed it must be. That duty is to take reasonable care in the circumstances to make the premises safe. *That duty does not change but the factors which are relevant to an assessment of what constitutes reasonable care will necessarily be very specific to each fact situation –*

thus the proviso “such care as in all circumstances of the case is reasonable.” [Emphasis added.]

[12] The Ontario Court of Appeal in the decision of *Kerr v. Loblaws Inc.*, [2007] O.J. No. 1921 (ON C.A.) states at para. 28 that the “applicable standard of care is one of reasonableness in the circumstances,” and “as circumstances vary from case to case, so do the requirements of meeting the statutory standard.”

[13] These principles are set forth in the Nova Scotia Court of Appeal decision in *Marche v. Empire Co. and Sobeys Inc.* (2001), 193 N.S.R. (2d) 132 (C.A.) where it was held in paras. 30 and 31:

Case law provides valuable assistance to a judge in determining whether the standard of care has been met. However, as is apparent from the jurisprudence, what is required to meet the reasonableness standard will vary from case to case. What meets the reasonableness standard in one situation may fall short in another.

The appellants urge that the facts of this case are close to, if not virtually identical with, those in cases it relied upon where the standard of care was found to have been met. There may be strong correlations with the facts in other cases, but not surprisingly, there are often noteworthy differences.

Analysis

[14] It is clear therefore that the standard of care required of the defendant is one of reasonableness, not perfection and unrealistic procedures are not required by law (*Indermaur v. Dames* (1866), L.R. 1 C.P. 274 at 288, cited with approval by the Supreme Court of Canada in *Campbell v. Royal Bank of Canada*, [1964] S.C.R. 85). However, an occupier is required to take all reasonable steps to minimize risk of injury to its patrons (*Kerr v. Loblaws*).

[15] In order to meet the standard of reasonable care, occupiers must tailor their preventative measures to the particular circumstances which could give rise to an unusual

danger. Again, I reiterate that a standard of perfection is not required. However, what is required to meet the standard of reasonableness will depend on the circumstances; what meets the reasonableness standard in one situation may fall short in another. As trial judge, my role is to consider all the evidence before the court and to assess whether, in the circumstances, the occupier met the requisite standard of reasonableness. In considering the preventative measures, the court must also determine whether or not the employees carried out their responsibilities in accordance with the employer's policy.

[16] The steps taken by the defendant in order to inspect the premises consisted of the hourly "floor walk checks" contained in Exhibit 3, Tab 4 and the daily maintenance checklist, Tab 1 of Exhibit 4, which indicates that on a daily basis the floors were swept and mopped or "zamboni'd" before the store opened. The floor walk checklist was in conflict with the accident report found at Tab 8 and the modified punch report at Tab 6, all to be found in Exhibit 3. By way of example, a former employee, Ben Mercodo, who was not called as a witness, completed the incident report shortly after the fall in which he states he cleaned the floor at the time of the accident. However, on reviewing the floor walk checklist, there were no floor walks taking place at two o'clock and those completed both prior and subsequent to the accident were performed by a Ms. Sharpe, her last floor walk being completed at 12:45 p.m. In addition, according to the employee modified punch report as examined, Mr. Mercodo does not appear to have worked on the day in question. The defence theory is that he just simply failed to punch in on the day. The inconsistencies with respect to this employee were found to occur in relation to each of the three employees who completed the checklist. In addition to inconsistencies in the documentation which was produced at trial, a number of relevant documents had been destroyed, including pictures of the scene of the accident and Mr. Mercodo's employment records. Thus while on the face of it the floor walk checklist appears to be thorough, on a closer analysis it is far less reliable.

[17] In listening to the witnesses who carried out the floor walks, it is my assessment that the primary function was to ensure the safety and security of the building, including tests taken of numerous coolers, freezers and cooking units. The witnesses testified that they also entered the washrooms and other rooms utilized by the staff to ensure their cleanliness. Unlike the cases involving grocery stores, there was not a program specifically related to the cleanup of items which would result in a customer slipping on the floor other than spills typically from the flower display and other locations. In my view, the scheduled inspections of the building and floors was inadequate. In particular, with respect to the aisle in which the plaintiff fell, it would appear that regularly scheduled inspection of the floor was non-existent. This absence of scheduled floor inspections existed notwithstanding that the salad display was in close proximity and it would be anticipated that customers would carry salads into the pharmaceutical area. Therefore, I conclude that the defendant did not meet the standard of reasonableness required when the occupier knew that the lettuce and other similar items could be transported to this area and dropped in the fashion acknowledged by the defendant.

Damages

[18] The plaintiff clearly was an active woman who is enjoying her role as a grandmother; she used a treadmill to maintain her health and was able to deal with her pains which had plateaued just prior to the accident. She now suffers significant pain in her left knee which requires a knee brace in order to assist her in walking and standing. In addition, she suffers pain in her right neck and shoulder. She will require ongoing massage therapy in order to keep her shoulder from freezing. In my assessing damages for pain and suffering, my view is that she is entitled to \$30,000.00.

[19] In reviewing the claim for special damages and ongoing treatment, I am satisfied that the plaintiff is entitled to payment of \$8,000.00 for expenses up to the date of this judgment and thereafter for the sum of \$10,000.00 for future care.

Costs

[20] I would ask counsel to make brief written submissions with respect to costs within 14 days of the release of this decision.

“ Justice J. F. McGarry”

Justice J. F. McGarry

Released: April 12, 2010